

VCU300278 Jimenez, Jose Louie III vs. Land O'Lakes, Inc.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-07-07

Motion: Plaintiff's Counsel's Motion to be Relieved

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Re: Jimenez, Jose Louie III vs. Land O'Lakes, Inc.

Case No.: VCU300278

Date: July 7, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiff's Counsel's Motion to be Relieved

Tentative Ruling: To grant the motion

On May 11, 2026, Plaintiff's Counsel Kane Moon, Allen Feghali, and Julie S. Oh, Kane Law Group, filed a motion to be relieved as counsel as to Plaintiff Jose Louie Jimenez III as to this PAGA matter. Plaintiff's Counsel filed the following with respect to withdrawing:

- (1) MC-051 - Notice of Motion and Motion to be Relieved as Counsel;
- (2) MC-052 – Declaration in Support of Attorney's Motion to Be Relieved as Counsel; and
- (3) MC-053 - Order Granting Attorney's Motion to Be Relieved as Counsel

Additionally, Plaintiff's Counsel has filed proof of service of these documents by mail.

Authority and Analysis

Code of Civil Procedure section 284 provides that "[t]he attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [or] 2. Upon the order of the court, upon the application of either client or attorney, after

notice from one to the other.”

California Rule of Court 3.1362(a) requires that the “notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel-Civil (form MC-051).”

As noted above, counsel has complied with California Rule of Court 3.1362(a) by submitting the notice and motion on MC-051 and by directing the notice and motion to all parties.

California Rule of Court 3.1362 (c) further mandates that: “The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1). Specifically, the declaration that Rule 3.1362(c) requires must state that the moving attorney attempted to secure a “Substitution of Attorney” from the client as required under Code of Civil Procedure section 284(1) and that the client refused to so stipulate.

Here, the declaration is properly made on form MC-052, and uses general terms without compromising confidentiality. The declaration indicates that counsel has been unable to contact Plaintiff for several months but has attempted to reach Plaintiff via telephone, through other known contacts, by mail, by email, and by arranging for an in-person attempt at Plaintiff's last known address, all without success. Although the declaration does not indicate attempts to obtain a substitution by stipulation, in light of the lack of contact, the Court will accept the declaration as satisfactory.

Next, service under Rule 3.1362(d) requires personal service, electronic service, or mail and counsel's declaration must note the service made. Here, service was by mail on May 11, 2026. The declaration of counsel indicates that Plaintiff's address was attempted, unsuccessfully, to be confirmed as current, but that the address is the last known address of Plaintiff.

Finally, Rule 3.1362(e) requires the proposed order be lodged with the Court on MC-053 with the moving papers, specifying all hearing dates scheduled, including date of trial. Plaintiff Counsel has complied with this requirement.

Therefore, the Court grants the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.